

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PROP061861: IN RE THE KIMBALL FAMILY TRUST

07/30/2026 in Department J6

Hearing on Petition for Order Confirming Trust Assets

Notice to Bank of America and Janus Henderson must be given in the manner provided in Chapter 4 (commencing with Section 413.10) in Title 5 of Part 2 of the Code of Civil Procedure. (Prob. Code, § 851, subd. (a)(2).) This does not mean that a summons should be served but rather that the manner of service must be the same as for a summons (e.g., personal service, leaving and mailing copies, or by mail with notice and acknowledgement of receipt).

Bank of America and Janus Henderson Investors have not been served in the manner required by Probate Code §851(a)(2).

Further, none of the DE-115s refer to the amended petition filed on 3/12/26. The amended petition supersedes the original petition and requires the same notice anew. (Cal. Rules of Court, rule 7.53(a).)

Petitioner to file proof of service showing statutorily sufficient service to Bank of America and Janus Henderson Investors.

The court continues the hearing to 10/15/26 at 9:00 a.m.

Upon proof of statutorily sufficient service of notice, the court intends to grant the petition.